

How to use this form:

- This form is for **review consideration of an administrative penalty**. This form is NOT for review of an order or decision from a dispute resolution hearing. If you need to apply for review consideration of an order or a decision relating to a dispute resolution hearing, see [form RTB-2](#).
- Submit this form in person at a Service BC Centre that accepts Residential Tenancy Branch (RTB) forms or the Burnaby RTB office. The RTB office address is provided at the bottom of this form.
- This form requires a \$50 filing fee or an applied fee waiver. You may pay the filing fee in person at the RTB Burnaby Office or at a Service BC Office. You can pay by Cash, Debit, Credit card [Visa, Mastercard or American Express], Visa Debit, MasterCard Debit, or Certified cheque payable to the Minister of Finance.
- If you would like to apply for a fee waiver because you have low income or extraordinary expenses, speak to a representative at a Service BC Centre or the Burnaby RTB office.
- If you submit this form to the Burnaby RTB office by mail, ensure it is postmarked by Canada Post staff within the 15-day review period. You may pay the filing fee by sending a certified cheque or money order payable to the Minister of Finance to the Residential Tenancy Branch Office or by paying in person at the RTB Burnaby Office or in person at a Service BC Office.

Important information about your application:

- This process is not a chance to reargue your case or review evidence that was or should have been presented before the director imposed the administrative penalty.
- Disagreeing with a decision is not grounds for a review.
- You must have one of the following grounds for review consideration (if one of these grounds does not apply, your application will be dismissed):
 - You were unable to be heard (make submissions) because of circumstances that could not be anticipated and were beyond the person's control
 - You have new and relevant evidence that was not available before the director imposed the administrative penalty and that materially affects the decision to impose the administrative penalty
 - The RTB made a procedural error that materially affected the decision to impose the administrative penalty or the amount of the administrative penalty
 - A technical irregularity or error occurred that materially affected the decision to impose an administrative penalty or the amount of the administrative penalty
 - The director did not determine an issue that the director was required to determine
- After you receive a decision or order, you must submit this application within 15 days
- You may request an extension of the deadline due to exceptional circumstances, with supporting evidence (see page 4 on this form)
- Your application will not be processed until the filing fee is received or a fee waiver has been approved
- **All required information must be provided and legible. Required information includes:**
 - Section 1: Key File Information (including your Compliance and Enforcement Unit [CEU] file number)
 - Section 2: At least one ground for review selected
 - Section 3: Declaration
- **You must attach all evidence to support your application**
- **Do not resubmit evidence you already submitted to the director in your opportunity to be heard**

Your personal information is collected under section 26 (a) and (c) of the Freedom of Information and Protection of Privacy Act for the purpose of administering the Residential Tenancy Act. If you have any questions regarding the collection of your personal information, please call 604-660- 1020 in Greater Vancouver; 250-387-1602 in Victoria; or 1-800-665-8779 elsewhere in B.C.

Section 1: Key Dispute Information

Who is filing this review application?

I am a **landlord** or authorized representative

I am a **tenant** or authorized representative

Compliance and Enforcement Unit File Number:
(e.g., 123456789)

Requester Information

First and middle name

Last name

Date of Birth (DD/MM/YYYY)

Email Address (*highly recommended*)

Contact Phone number (*required*)

Site/unit#

Street # and name

City

Province

Postal code

Receive RTB
documents by:

Email

Pick up

Mail

Date (DD/MM/YYYY)

Provide the date on the administrative
penalty decision or order you are
requesting to be reviewed:

Date (DD/MM/YYYY)

Provide the date you received the administrative
penalty decision or order you are
requesting to be reviewed:

Request for Extension of Time to Apply for Review

I am requesting an extension of time to make this application

Describe why you were unable to submit the Application for Review Consideration of an Administrative Penalty before the deadline.

If you do not submit evidence to support your late submission, your application may be dismissed. Your evidence must show how an exceptional circumstance caused your late submission.

Section 2: Grounds for Review: (Select all that apply and provide a brief description of each one)

I was unable to be heard (make submissions) because of circumstances that could not be anticipated and were beyond your control (e.g., medical emergency).

You must show that the reasons you could not attend were beyond your control and not anticipated.

Please describe:

- What happened that was beyond your control and could not have been anticipated which prevented you from being heard (making submissions); and
- What testimony or evidence you would have provided if you were able to provide written submissions

I have new and relevant evidence that was not available before the director imposed the administrative penalty and that materially affects the decision to impose the administrative penalty. You must include this new and relevant evidence that was not available before the director imposed the administrative penalty.

List each item of new and relevant evidence, why it was not available before the director imposed the administrative penalty, and how it is relevant and could reasonably be expected to have affected the result.

The RTB made a procedural error that materially affected the decision to impose the administrative penalty or the amount of the administrative penalty.

Please describe:

- The procedural error that was made on the Compliance and Enforcement file in issue
- How the procedural error materially affected the decision to impose the administrative penalty or the amount of the administrative penalty

Note: This does not include decisions about process and procedure. Review is not available where the Director made a decision to exclude materials.

A technical irregularity or error occurred that materially affected the decision to impose an administrative penalty or the amount of the administrative penalty.

Please describe:

- The technical irregularity or error that occurred on the Compliance and Enforcement file in issue
- How the technical irregularity or error materially affected the decision to impose an administrative penalty or the amount of the administrative penalty

The director did not determine an issue that the director was required to determine.

Please describe the issue that the director did not determine that was central to the decision to impose an administrative penalty or the amount of the administrative penalty.

Section 3: Declaration: By signing below, I certify that:

- I have the authority to make this application for review consideration.
- All information that is being provided in this application is true, correct, and complete to the best of my knowledge.
- I understand it is a legal offense to provide false or misleading information and evidence to the RTB.
- I understand that the director may order a person to pay a monetary penalty if the director is satisfied on a balance of probabilities that the person has given false or misleading information in a dispute resolution proceeding or an investigation.
- I authorize the RTB to enter this information on my behalf.

Date (DD/MM/YYYY)	Full name of requester (print) or authorized agent	Signature of requester or authorized agent
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RTB General Inquiries

Email: RTBCompliance@gov.bc.ca

Website: www.gov.bc.ca/landlordtenant
www.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies/compliance-and-enforcement

Phone: Greater Vancouver: 604-660-1020
Victoria: 250-387-1602
Toll Free: 1-800-665-8779

In Person: **Lower Mainland**
400 - 5021 Kingsway
Burnaby, BC, V5H 4A5
Outside of Lower Mainland
Visit one of our many Service BC Offices, listed at www.servicebc.gov.bc.ca